TREATIES AND OTHER INTERNATIONAL AGREEMENTS OF THE UNITED STATES OF AMERICA 1776–1949

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Volume 3

MULTILATERAL

1931–1945

DECLARATION BY UNITED NATIONS

Signed at Washington January 1, 1942

55 Stat. 1600; Executive Agreement Series 236

A JOINT DECLARATION BY THE UNITED STATES OF AMERICA, THE UNITED KINGDOM OF GREAT BRITAIN AND NORTHERN IRELAND, THE UNION OF SOVIET SOCIALIST REPUBLICS, CHINA, AUSTRALIA, BELGIUM, CANADA, COSTA RICA, CUBA, CZECHOSLOVAKIA, DOMINICAN REPUBLIC, EL SALVADOR, GREECE, GUATEMALA, HAITI, HONDURAS, INDIA, LUXEMBOURG, NETHERLANDS, NEW ZEALAND, NICARAGUA, NORWAY, PANAMA, POLAND, SOUTH AFRICA, YUGOSLAVIA.

The Governments signatory hereto,

Having subscribed to a common program of purposes and principles embodied in the Joint Declaration of the President of the United States of America and the Prime Minister of the United Kingdom of Great Britain and Northern Ireland dated August 14, 1941, known as the Atlantic Charter.[1]

Being convinced that complete victory over their enemies is essential to defend life, liberty, independence and religious freedom, and to preserve human rights and justice in their own lands as well as in other lands, and that they are now engaged in a common struggle against savage and brutal forces seeking to subjugate the world,

DECLARE:

(1) Each Government pledges itself to employ its full resources, military or economic, against those members of the Tripartite Pact [2] and its adherents with which such government is at war.

(2) Each Government pledges itself to cooperate with the Governments signatory hereto and not to make a separate armistice or peace with the enemies.

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[1] EAS 236, *ante*, p. 686.

[2] A tripartite pact was signed at Berlin Sept. 27, 1940, by Germany, Italy, and Japan.

The foregoing declaration may be adhered to by other nations which are, or which may be, rendering material assistance and contributions in the struggle for victory over Hitlerism.

Done at Washington
January First, 1942

The United States of America
by FRANKLIN D. ROOSEVELT

The United Kingdom of Great Britain
and Northern Ireland
by WINSTON S. CHURCHILL

On behalf of the Government of the
Union of Soviet Socialist Republics
MAXIM LITVINOFF
Ambassador

National Government of the Republic of
China
TSE VUNG SOONG
Minister for Foreign Affairs

The Commonwealth of Australia
by R. G. CASEY

The Kingdom of Belgium
by Cte. R. v. STRATEN

Canada
by LEIGHTON McCARTHY

The Republic of Costa Rica
by LUIS FERNÀNDEZ

The Republic of Cuba
by AURELIO F. CONCHESO

Czechoslovak Republic
by V. S. HURBAN

The Dominican Republic
by J. M. TRONCOSO

The Republic of El Salvador
by C. A. ALFARO

The Kingdom of Greece
by CIMON G. DIAMANTOPOULOS

The Republic of Guatemala
by ENRIQUE LOPEZ HERRARTE

La Republique d'Haïti
par FERNAND DENNIS

The Republic of Honduras
by JULIÁN R. CÁCERES

India
by GIRJA SHANKAR BAJPAI

The Grand Duchy of Luxembourg
by HUGHES LE GALLAIS

The Kingdom of the Netherlands
A. LOUDON

Signed on behalf of the Govt. of the
Dominion of New Zealand
by FRANK LANGSTONE

The Republic of Nicaragua
by LEÓN DE BAYLE

The Kingdom of Norway
by W. MUNTHE MORGENSTIERNE

The Republic of Panamá
by JAÉN GUARDIA

The Republic of Poland
by JAN CIECHANOWSKI

The Union of South Africa
by RALPH W. CLOSE

The Kingdom of Yugoslavia
by CONSTANTIN A. FOTITCH

[The declaration was subsequently signed for Mexico and the Philippines (June 14, 1942), Iraq and Brazil (April 10, 1943), Bolivia (May 5, 1943), Iran (September 14, 1943), Colombia (January 17, 1944), Ethiopia (March 7, 1944), Liberia (April 10, 1944), France (January 1, 1945), Ecuador, Paraguay, Peru, and Chile (February 14, 1945), Venezuela (February 20, 1945), Uruguay (February 24, 1945), Turkey and Egypt (February 28, 1945), and Saudi Arabia, Syria, and Lebanon (April 12, 1945).]

FIRST CAIRO CONFERENCE, 1943

Communiqué released December 1, 1943 [1]

1943 For. Rel. (Conferences at Cairo and Tehran) 448

President Roosevelt, Generalissimo Chiang Kai-Shek and Prime Minister Churchill, together with their respective military and diplomatic advisers, have completed a conference in North Africa. The following general statement was issued:

"The several military missions have agreed upon future military operations against Japan. The three great Allies expressed their resolve to bring unrelenting pressure against their brutal enemies by sea, land and air. This pressure is already rising.

"The three great Allies are fighting this war to restrain and punish the aggression of Japan. They covet no gain for themselves and have no thought of territorial expansion. It is their purpose that Japan shall be stripped of all the islands in the Pacific which she has seized or occupied since the beginning of the first World War in 1914, and that all the territories Japan has stolen from the Chinese, such as Manchuria, Formosa, and the Pescadores, shall be restored to the Republic of China. Japan will also be expelled from all other territories which she has taken by violence and greed. The aforesaid three great powers, mindful of the enslavement of the people of Korea, are determined that in due course Korea shall become free and independent.

"With these objects in view the three Allies, in harmony with those of the United Nations at war with Japan, will continue to persevere in the serious and prolonged operations necessary to procure the unconditional surrender of Japan."

[1] The First Cairo Conference met from Nov. 22 to Nov. 26, 1943.

CRIMEA (YALTA) CONFERENCE, 1945: ENTRY OF SOVIET UNION INTO WAR AGAINST JAPAN

Agreement signed at Yalta February 11, 1945

59 Stat. 1823; Executive Agreement Series 498; 1945 For. Rel. (Conferences at Malta and Yalta) 984

AGREEMENT

The leaders of the three Great Powers—the Soviet Union, the United States of America and Great Britain—have agreed that in two or three months after Germany has surrendered and the war in Europe has terminated the Soviet Union shall enter into the war against Japan on the side of the Allies on condition that:

1. The status quo in Outer-Mongolia (The Mongolian People's Republic) shall be preserved;

2. The former rights of Russia violated by the treacherous attack of Japan in 1904 shall be restored, viz:

(a) the southern part of Sakhalin as well as all the islands adjacent to it shall be returned to the Soviet Union,

(b) the commercial port of Dairen shall be internationalized, the preeminent interests of the Soviet Union in this port being safe-guarded and the lease of Port Arthur as a naval base of the USSR restored,

(c) the Chinese-Eastern Railroad and the South-Manchurian Railroad which provides an outlet to Dairen shall be jointly operated by the establishment of a joint Soviet-Chinese Company it being understood that the preeminent interests of the Soviet Union shall be safeguarded and that China shall retain full sovereignty in Manchuria;

3. The Kuril islands shall be handed over to the Soviet Union.

It is understood, that the agreement concerning Outer-Mongolia and the ports and railroads referred to above will require concurrence of Generalissimo Chiang Kai-Shek. The President will take measures in order to obtain this concurrence on advice from Marshal Stalin.

The Heads of the three Great Powers have agreed that these claims of the Soviet Union shall be unquestionably fulfilled after Japan has been defeated.

For its part the Soviet Union expresses its readiness to conclude with the National Government of China a pact of friendship and alliance between the U.S.S.R. and China in order to render assistance to China with its armed forces for the purpose of liberating China from the Japanese yoke.

February 11, 1945

J. STALIN
FRANKLIN D. ROOSEVELT
WINSTON S. CHURCHILL

219-917—69——66

TERMS FOR JAPANESE SURRENDER [1]

Proclamation approved at Berlin (Potsdam) July 26, 1945

1945 For. Rel. (Conference of Berlin (Potsdam), II) 1474

PROCLAMATION BY THE HEADS OF GOVERNMENTS, UNITED STATES, CHINA AND THE UNITED KINGDOM [2]

(1) We, the President of the United States, the President of the National Government of the Republic of China and the Prime Minister of Great Britain, representing the hundreds of millions of our countrymen, have conferred and agree that Japan shall be given an opportunity to end this war.

(2) The prodigious land, sea and air forces of the United States, the British Empire and of China, many times reinforced by their armies and air fleets from the west are poised to strike the final blows upon Japan. This military power is sustained and inspired by the determination of all the Allied nations to prosecute the war against Japan until she ceases to resist.

(3) The result of the futile and senseless German resistance to the might of the aroused free peoples of the world stands forth in awful clarity as an example to the people of Japan. The might that now converges on Japan is immeasurably greater than that which, when applied to the resisting Nazis, necessarily laid waste to the lands, the industry and the method of life of the whole German people. The full application of our military power, backed by our resolve, *will* [3] mean the inevitable and complete destruction of the Japanese armed forces and just as inevitably the utter devastation of the Japanese homeland.

(4) The time has come for Japan to decide whether she will continue to be controlled by those self-willed militaristic advisers whose unintelligent calculations have brought the Empire of Japan to the threshold of annihilation, or whether she will follow the path of reason.

(5) Following are our terms. We will not deviate from them. There are no alternatives. We shall brook no delay.

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[1] A treaty of peace with Japan (3 UST 3169; TIAS 2490) was signed at San Francisco Sept. 8, 1951, and entered into force Apr. 28, 1952.

[2] For a Soviet statement of Aug. 8, 1945, adhering to "the statement of the Allied powers of July 26, 1945" and declaring war on Japan, see 1945 For. Rel. (Conference of Berlin (Potsdam), II) 1474. For a letter of Aug. 11, 1945, in which the French Ambassador at Washingt n informed the Secretary of State that France had given "its full consent to the ultimatum sent to Japan on July 26," see *ibid.*, p. 1555.

[3] The words printed in italics throughout this document were originally underscored, apparently to call attention to changes from an earlier draft. This emphasis was inadvertently carried over into later drafts and into the final text of the proclamation (*ibid.*, p. 1475).

(6) There must be eliminated for all time the authority and influence of those who have deceived and misled the people of Japan into embarking on world conquest, for we insist that a new order of peace, security and justice will be impossible until irresponsible militarism is driven from the world.

(7) Until such a new order is established *and* until there is convincing proof that Japan's war-making power is destroyed, points in Japanese territory to be designated by the Allies shall be occupied to secure the achievement of the basic objectives we are here setting forth.

(8) The terms of the Cairo Declaration [4] shall be carried out and Japanese sovereignty shall be limited to the islands of Honshu, Hokkaido, Kyushu, Shikoku and such minor islands as we determine.

(9) The Japanese military forces, after being completely disarmed, shall be permitted to return to their homes with the opportunity to lead peaceful and productive lives.

(10) We do not intend that the Japanese shall be enslaved as a race or destroyed as a nation, but stern justice shall be meted out to all war criminals, including those who have visited cruelties upon our prisoners. The Japanese government shall remove all obstacles to the revival and strengthening of democratic tendencies among the Japanese people. Freedom of speech, of religion, and of thought, as well as respect for the fundamental human rights shall be established.

(11) Japan shall be permitted to maintain such industries as will sustain her economy and permit the exaction of just reparations in kind, but not those industries which would enable her to re-arm for war. To this end, access to, as distinguished from control of raw materials shall be permitted. Eventual Japanese participation in world trade relations shall be permitted.

(12) The occupying forces of the Allies shall be withdrawn from Japan as soon as these objectives have been accomplished and there has been established in accordance with the freely expressed will of the Japanese people a peacefully inclined and responsible government.

(13) We call upon the Government of Japan to proclaim now the unconditional surrender of all the Japanese armed forces, and to provide proper and adequate assurances of their good faith in such action. The alternative for Japan is prompt and utter destruction.

POTSDAM, July 26, 1945

HARRY S. TRUMAN
WINSTON CHURCHILL
by H. S. T.[5]

PRESIDENT OF CHINA
by wire [6]

[4] *Ante*, p. 858.

[5] For Prime Minister Churchill's authorization, see 1945 For. Rel. (Conference of Berlin (Potsdam), II) 1279.

[6] For Generalissimo Chiang Kai-shek's concurrence, see *ibid.*, p. 1282.